

1963 CHAPTER 10

An] Act to provide for the assessment of drainage rates by reference to values determined under section 8 of the Agriculture (Miscellaneous Provisions) Act 1943, notwithstanding the repeal of that section.

[28th March 1963]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where the annual value of any hereditament for the purposes of any drainage rate made for a period ending on 31st March 1959 was a value determined under section 8 of the Agriculture (Miscellaneous Provisions) Act 1943 (which provided for the determination of an increased value of land improved as a result of drainage operations) the following provisions of this section shall have effect as respects the assessment of any land which is or forms part of that hereditament for the purposes of any drainage rate made for any period to which this section applies in relation to the land.

Drainage rates in the case of certain land improved by drainage operations.
6 & 7 Geo. 6. c. 16.

(2) If, in the case of any such land, the value on which a drainage rate is assessed would, but for this Act, be either—

(a) its annual value as determined, within the meaning of section 1 of the Drainage Rates Act 1958, for the purposes of Schedule A; or

6 & 7 Eliz. 2. c. 37.

(b) one-third of that annual value;

the drainage rate shall instead be assessed on the value or, as the case may be, one-third of the value, mentioned in subsection (1) of this section, apportioned, where the land forms part only of the said hereditament, under section 29 (2) of the Land Drainage Act 1930.

20 & 21 Geo. 5. c. 44.

(3) This section applies, in relation to any land, to any period beginning—

(a) after the end of March 1959; and

(b) before a fresh determination of the annual value for the purposes of Schedule A of the land or of any land of which it forms part has become effective.

15 & 16 Geo. 6.
& 1 Eliz. 2.
c. 10.

(4) For the purposes of this section a fresh determination of the annual value of any land for the purposes of Schedule A shall be taken to have become effective when an assessment in respect of the land has been signed and allowed under section 35 of the Income Tax Act 1952 as applied by Schedule 5 (determination of annual value for years of revaluation) to that Act and either—

- (a) the time for appealing against the assessment has expired without notice of appeal having been given; or
- (b) any proceedings on an appeal against the assessment (including any proceedings in consequence of such an appeal) have been finally disposed of.

(5) Nothing in this Act shall affect any assessment validly made before the passing of this Act.

Short title
and extent.

2.—(1) This Act may be cited as the Drainage Rates Act 1963.

(2) This Act does not extend to Scotland or to Northern Ireland.

1963 CHAPTER 11

Agriculture (Miscellaneous Provisions) Act 1963

ARRANGEMENT OF SECTIONS

Section

1. Increase of amounts available for improvement grants under Hill Farming Act 1946.
2. Extension of period for payments of subsidies in respect of hill sheep and cattle.
3. Increase of amounts available for grants under Part II of Agriculture Act 1957.
4. Extension of Agriculture (Fertilisers) Act 1952.
5. Registration of suppliers for purposes of Agriculture (Fertilisers) Act 1952 and penalty for false statements, etc.
6. Grants towards construction of certain buildings used by farmers' machinery syndicates.
7. Amount of grants under s. 6 and supplementary provisions as to such grants.
8. Grants to bodies promoting co-operation in agriculture and horticulture.
9. Grants for promotion of efficient marketing.
10. Winter keep grants.
11. Grassland renovation grants.
12. Supplementary provisions as to schemes under two preceding sections.
13. Seizure of carcasses, etc. liable to spread disease.
14. Protection of farm animals exposed for sale.
15. Distribution of fowl pest vaccine at subsidised prices.
16. Fees.
17. Prescribed standards for bulls and boars licensed for breeding purposes.
18. Dissolution of Agricultural Land Commission and Welsh Agricultural Land Sub-Commission.